

25SMCV01722 25SMCV01722

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-27

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

27, 2026

CASE NUMBER

25SMCV01722

MOTION

Motion

for Summary Adjudication

MOVING PARTIES

Defendants Costco Wholesale Corporation and

Carl Barrio

OPPOSING PARTY

Plaintiff

Susan Neuberg

MOVING PAPERS:

Notice

of Motion and Motion for Summary Adjudication; Memorandum of Points and

Authorities

Evidence

and Exhibit List

Separate

Statement of Undisputed Material Facts

OPPOSITION PAPERS:

Opposition to Motion for Summary Adjudication;

Memorandum of Points and Authorities

REPLY PAPERS:

Reply

to Plaintiff's Opposition to Motion for Summary Adjudication

BACKGROUND

This case arises from a slip and fall in a grocery store. On April 3, 2025, Plaintiff Susan Neuberg

("Plaintiff") filed suit against Defendants Costco Wholesale Corporation and

Carl Barrio ("Defendants") alleging two causes of action for premises liability

and negligent hiring.

On June 4, 2026, the Court granted Plaintiff's motion for a trial

preference, and set the trial for September 28, 2026.

Defendants now move for summary adjudication of the following issues:

1. Issue No. 1: Plaintiff has failed to provide

any evidence and cannot reasonably obtain evidence showing that Costco is

guilty of oppression, fraud or malice; and

2. Issue No. 2: Plaintiff has failed to provide

any evidence and cannot reasonably obtain evidence showing that Barrio is

guilty of oppression, fraud or malice.

Plaintiff opposes the motion and

Defendants reply.

LEGAL STANDARDS – MOTION FOR SUMMARY

JUDGMENT/ADJUDICATION

"[T]he party moving for

summary judgment bears the burden of persuasion that there is no triable issue

of material fact and that he is entitled to judgment as a matter of law[.]

There is a triable issue of material fact if, and only if, the evidence would

allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.”

¿(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850

(hereafter Aguilar).) ¿“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” ¿(Ibid.; Smith v. Wells Fargo Bank,

N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, “the trial court

may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the

trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840

[cleaned up]; see also Weiss v. People ex rel. Department of Transportation

(2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or

summary adjudication may not weigh the evidence but must instead view it in the

light most favorable to the opposing party and draw all reasonable inferences

in favor of that party”].)

A party may move for

summary adjudication as to one or more causes of action, affirmative defenses,

claims for damages, or issues of duty if that party contends that there is no

merit to the cause of action, defense, or claim for damages, or if the party

contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be

granted only if it completely disposes of a cause of action, an affirmative

defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or

more elements of the cause of action cannot be separately established, even if

that element is separately pleaded, or (2) a defendant establishes an

affirmative defense to that cause of action.

(See Code Civ. Proc., §

437c, subd. (n); *Union Bank v. Superior*

Court (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the

burden shifts to the plaintiff to show that a triable issue of material fact

exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); *Union Bank v. Superior Court*, *supra*, 31 Cal.App.4th at p.

583.) Additionally, in line with *Aguilar*,

“[o]n a motion for summary adjudication, the trial court has no discretion to

exercise. If a triable issue of material fact exists as to the challenged

causes of action, the motion must be denied. If there is no triable issue of

fact, the motion must be granted.” (Fisherman's Wharf Bay Cruise Corp.

v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

1. PROCEDURAL ISSUES

Code of Civil Procedure

section 437c provides that notice of the motion and supporting papers shall be

served on all other parties to the action at least 81 days before the time

appointed for hearing. If service is by

mail, that time frame is increased by 5 days.

For electronic service, that period is increased by two court days. (Code Civ. Proc., § 437c, subd. (a)(2).)

Further the motion shall be

heard no later than 30 days prior to trial.

(Code Civ. Proc., § 437c, subd. (a)(3).)

Here, the proof of service

indicates Defendants filed and personally served the notice and supporting

papers on June 8, 2026, with a noticed hearing date of August 25, 2026, which

provides only seventy-eight (78) days' notice.

On July 8, 2026, Defendants

unilaterally continued the hearing on their Motion for Summary Adjudication to

the current hearing date of August 27.

Although a Court may shorten

the requirement that the motion be heard at least 30 days prior to trial for

good cause shown, the Court does not have jurisdictional authority to shorten

the minimum notice period. (*Urshan v.*

Musicians' Credit Union (2004) 120 Cal.App.4th 758, 764.)

Further, the problem of

insufficient notice cannot be cured by simply continuing the hearing date to a

date that would have been at least 81 days after the initial notice, because the

original notice was fundamentally defective, in violation of Plaintiff's Due

Process rights. (*Robinson v. Woods*

(2008) 168 Cal.App.4th 1258, 1268.)

In reply, Defendants cite to *Lackner*

v. North (2006) 135 Cal.App.4th 1188 as standing for the proposition that

the notice period runs from the date of original service to the continued

hearing date. But in *Lackner*, the

party opposing the motion requested and received the requested hearing

continuance to a date that was more than the requisite time after the initial

service date but less than the requisite time after the continuance was

granted. Under those circumstances,

the Court held that the opposing party had the requisite notice.

By contrast, here, not only

was Plaintiff not given the requisite 81 days' notice on June 8 when the motion

was noticed for August 25, Plaintiff also not given the requisite 81 days'

notice a month later on July 8, 2026, when Defendants unilaterally continued

the hearing date by only two days.

Moreover, even if the Court

were to accept Defendants' interpretation of Lackner, Defendants have still not provided

Plaintiff the required eighty-one (81) days' notice, as the current hearing

date of August 27 is only eighty (80) days after the June 8, 2026 service date.

Therefore, Defendants have not

provided Plaintiff the required statutory 81 days of notice of the hearing on

the motion for summary adjudication, and the problem cannot be cured at this

point to provide Plaintiff the requisite 81 days of notice anew and have the

motion heard prior to trial, nor can the preference trial be continued to

accommodate the motion.

CONCLUSION AND ORDER

Therefore, the Court denies Defendant's motion for summary

adjudication on procedural grounds for lack of notice under Code of Civil

Procedure section 437c.

Defendants shall provide notice of the Court's ruling and file the

notice with a proof of service forthwith.

DATED: August 27, 2026 ____/s/____

Michael

E. Whitaker

Judge

of the Superior Court